STANDARD OPERATING PROCEDURE	G-2200

	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 12/04/06	DATE REVISED **03/25/25**	DATE REVIEWED 03/24/24
		APPROVED: *GREG LONDON*		
CHAPTER TITLE GENERAL		RESOURCES FOP CONTRACT N.R.S. 23-1734		
SUBJECT DISCIPLINE		CROSS REFERENCE G-2100 COMPLAINT PROCEDURE G-5300 PERSONNEL FILES		

I. Purpose:

The purpose of this policy is to establish procedures for the administration of discipline.

II. Policy:

The Sarpy Count Sheriffs Office has a responsibility to its employees and the community to discipline employees whose conduct and/or performance impairs the effective operations or discredits the Sheriff's Office or themselves. The purpose of discipline is to improve an employee's conduct and/or performance.

Generally, the lowest appropriate discipline available shall be recommended by a supervisor and/or a commander. However, a higher level of discipline may be warranted for one or more of the following reasons: 1) The Sheriff's Office has a philosophy of progressive discipline; 2) Lesser forms of discipline have previously failed; or 3) The gravity of the violation dictates harsher discipline.

III. Procedures:

A. Cause of Disciplinary Action: Policies, procedures, rules, and directives are promulgated as guidelines to acceptable and desired objectives. Violation of such guidelines, whether on duty or off duty, shall subject employees to disciplinary action, except for the Sheriff. The following violations are cause for disciplinary action:

1. Violations of law.
2. Violations of lawful orders.
3. Violations of Sheriff's Office written directives such as SOP's, procedures, and written orders.

B. **Levels of Disciplinary Action:** There are six levels of discipline, ranging from Counseling to Termination (see below).

Disciplinary recommendations shall be based on the nature of the violation and seriousness of the offense. Consequently, the lowest level of discipline is not required for the first violation.

The Sheriff's Office shall employ progressive discipline. A repeated violation of a similar nature shall result in an increased level of disciplinary action.

Whenever a recommendation to discipline an employee is made, the supervisor (or commander, if applicable) shall list the specific SOP violation(s) in the Finding Report. Should a commander reviewing the investigation have a different opinion about the policy violation(s), he or she shall submit a memo that supplements the Findings Report. The memo shall contain the specific SOP's the commander believes were violated if he or she is also recommending discipline.

An employee may receive disciplinary action for one or more of the following reasons:

1. Counseling:

- **a)** Violation was very minor in nature and/or consequence.
- **b)** Violation was unintentional and/or involved only slight negligence.

2. Admonishment:

- **a)** Violation was minor in nature and/or consequence.
- **b)** Violation was intentional and/or involved a greater degree of negligence.

3. Reprimand:

- **a)** Violation was serious.
- **b)** Violation was intentional.
- **c)** Violation involved substantial negligence.
- **d)** Violation resulted in moderate consequences.
- **e)** Aggravated and/or articulable circumstances that warrants a reprimand.

4. Suspension (Without Pay):

- **a)** Violation was severe.
- **b)** Violation was intentional.
- **c)** Violation involved gross negligence.
- **d)** Violation resulted in substantial consequences.

e) Aggravated and/or articulable circumstances that warrants a suspension.

5. Demotion:

a) Violation was severe.
b) Violation was intentional.
c) Violation involved gross negligence.
d) Violation resulted in substantial consequences.
e) Ineffective, inefficient, or inappropriate supervision.
f) Aggravated and/or articulable circumstances that warrants a demotion.

6. Termination:

a) Violation was grave.
b) Violation was intentional.
c) Violation involved gross negligence.
d) Violation resulted in substantial consequences.
e) Ineffective, inefficient, or inappropriate supervision.
f) Aggravated and/or articulable circumstances that warrants termination.

C. **Administration of Discipline:** After an Internal Affairs Investigation or a Line Investigation is completed (see G-2100 Complaint Procedure), the discipline shall be administered as follows:

1. Disciplinary action may be recommended by any supervisor or commander.

2. If an employee is facing a suspension, demotion or termination, the Professional Standards Commander shall schedule a disciplinary meeting with the Sheriff.

a) Sworn employee shall have at least twenty-four (24) hours of notice before the hearing. The employee may waive the twenty-four (24) hours if he or she chooses. This shall be documented in writing.

b) Non-sworn employees shall have at least forty-eight (48) hours of notice before the hearing. The employee may waive the forty-eight (48) hours if he or she chooses. This shall be documented in writing.

c) The purpose of this hearing is for the employee to be advised of the facts and circumstances surrounding the proposed disciplinary action, to contest any information, to present a rebuttal, and to make any remarks for consideration before final disciplinary action is taken.

d) The command officer or supervisor recommending the discipline may be required to attend the meeting.

3. The Sheriff shall have final disciplinary authority. If the Sheriff is unavailable, final discipline may be administered by the Chief Deputy.

4. The Professional Standards Division shall initiate a Disciplinary Action Letter after the Sheriff has decided on the appropriate discipline. It is the responsibility of the command officer or supervisor who recommended the discipline to meet with the employee and have him or her sign the Disciplinary Action Letter.

5. It shall be the responsibility of the Division Commander to ensure any training or counseling mandated by the Sheriff take place.

6. The Professional Standards Division shall ensure the signed Disciplinary Action Letter, Findings Report, and related memos are placed in the employee's personnel file.

~~7.~~ The Disciplinary Action Letter, the Findings Report and related memos shall remain in the employee's personnel file for a period determined by contract (see FOP contract). An Administrative Commander or Professional Standards designee shall remove the discipline from the employees file when the appropriate time has passed (see G-5300 Personnel Files).

8. If a sworn employee is disciplined with suspension, demotion or termination, the Professional Standards Commander shall ensure the Sheriff's Office sends a written order advising of the discipline to the Sarpy County Merit Commission per Nebraska State Statute 23-1734.

9. Should the final discipline be related to a law violation, the Professional Standards Division Commander shall notify the Crime Commission.